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Case Number: 23SMCV05350 Hearing Date: July 28, 2026 Dept: M

CASE NAME: Fletes v. American

Honda Motor Company

CASE NO.: 23SMCV05350

MOTION: Motion

for Summary Judgment/Adjudication

HEARING DATE: 7/28/2026

Legal

Standard

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (CCP, § 437c(a).) "The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants

either owed or did not owe a duty to the plaintiff or plaintiffs.” (CCP, § 437c(f)(1).) If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1544.) “[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to” subdivision (t). (CCP, § 437c(t).)

To prevail, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (CCP, § 437c(c).) The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (*Murillo v. Rite Stuff Food Inc.* (1998) 65 Cal.App.4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, “[a]ll doubts as to whether any material, triable, issues of fact exist are to be resolved in favor of the party opposing summary judgment...” (*Gold v. Weissman* (2004) 114 Cal.App.4th 1195, 1198-99.) “In other words, the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences there from must be accepted as true.” (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 179.) However, if adjudication is otherwise proper the motion “may not be denied on grounds of credibility,” except when a material fact is the witness’s state of mind and “that fact is sought to be established solely by the [witness’s] affirmation thereof.” (CCP, § 437c(e).)

Once the moving party has met their burden, the burden shifts to the opposing party “to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (CCP § 437c(p)(1).) “[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element... necessary to sustain a judgment in his favor.” (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.)

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“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to

delimit the scope of the issues and to frame the outer measure of materiality in a summary judgment proceeding.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493, quotations and citations omitted.) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Ibid.)

Analysis

Defendant American Honda Motor

Company Inc. moves for summary judgment, or in the alternative, summary adjudication, as to all causes of action alleged in Plaintiff Noelia Fletes’s Complaint. Notably, the motion for summary adjudication is moot as to the fourth cause of action for breach of the implied warranty, the fifth cause of action for fraudulent concealment, and the request for punitive damages. On June 24, 2026, the Court granted Defendants’ demurrer and motion to strike as to those issues. Therefore, only the first, second and third causes of action remain.

Evidentiary Issues

Defendant’s objection to the Lister Declaration is OVERRULED.

Statute of Limitations

Defendant challenges the remaining claims based upon violations of the statute of limitations. An action under the Song–Beverly Act has the following elements: “(1) the product had a defect or nonconformity covered by the express warranty; (2) the product was presented to an authorized representative of the manufacturer for repair; and (3) the manufacturer or its representative did not repair the defect or nonconformity after a reasonable number of repair attempts.” (Robertson v. Fleetwood Travel Trailers of Cal., Inc. (2006) 144 Cal.App.4th 785, 799.)

In general, a statute of limitations begins to run “when the cause of action is complete with all of its elements,” namely, wrongdoing, causation, and resulting harm. (Norgart v. Upjohn Co. (1999) 21 Cal.4th 383, 397.) The application of the statute of limitations is generally a question of fact. (Jolly v. Eli Lilly & Co.

(1988) 44 Cal.3d 1103, 1112.) Summary judgment is proper on such grounds where the uncontradicted facts establish “only one legitimate inference”. (Ibid.)

The four-year statute of limitations of Cal. Comm. Code section 2725 applies to claims brought under the Song-Beverly Act. (Krieger v. Nick Alexander Imports, Inc. (1991) 234 Cal.App.3d 205, 213-14; Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1306.) Section 2725(2) states:

“A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.”

Thus, a cause of action for breach of warranty generally occurs when the breach occurs “regardless of the aggrieved party's lack of knowledge of the breach” and at the time of tender of delivery. (Comm. Code § 2725(2).) The discovery rule of Section 2725(2) applies to express warranty claims, such that a cause of action under the SBA accrues not on the date of sale, but rather when the plaintiff discovers or should have discovered that the warrantor or its authorized repair facility was unable to fix the warranty-covered defects after a reasonable number of repair opportunities. (Krieger, supra, 234 Cal.App.3d at 218.)

Generally, the “delayed discovery rule” may be invoked where a plaintiff establishes facts showing that a reasonable person under the circumstances would not have had information sufficient to be put on inquiry concerning defendant's tort. (Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 807- 809.) “The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury if they have “information of circumstances to put [them] on inquiry” or if they have “the opportunity to obtain knowledge from sources open to [their] investigation.” (Id. at 807–808, citing Gutierrez v. Mofid (1985) 39 Cal.3d 892, 896–897.) “When a potential plaintiff who suspects that an injury has been wrongfully caused must conduct a reasonable investigation of all potential causes of that injury. If such an investigation would have

disclosed a factual basis for a cause of action, the statute of limitations begins to run on that cause of action when the investigation would have brought such information to light. In order to adequately allege facts supporting a theory of delayed discovery, the plaintiff must plead that, despite diligent investigation of the circumstances of the injury, he or she could not have reasonably discovered facts supporting the cause of action within the applicable statute of limitations period.” (Id. at 808–809.)

Defendant presents evidence that the statute of limitations accrued in June 2019, approximately four years and five months before Plaintiff filed suit in November 2023. Plaintiff purchased the Subject Vehicle on June 9, 2016. (SAC ¶ 6; UMF 1.) The express new vehicle warranty states that her “vehicle is covered for 3 years or 36,000 miles, whichever comes first.” (SAC Ex. A, at 9; UMF 6.) The express warranties also include a 5-year or 60,000 mile powertrain warranty, 7-year or 70,000 miles emission warranty, and a 5-year rust warranty. (Id.) Defects and nonconformities manifested themselves within the applicable express warranty period, including but not limited to, sensing defects; electrical defects; engine defects; and transmission defects. (SAC ¶ 12.) The express limited warranty began on June 9, 2016, and expired no later than June 9, 2019. (UMF 1, 7.) The new vehicle limited warranty expired, at the latest, on June 9, 2020. (UMF 8.) Plaintiff testified that the Subject Vehicle had a sensor issue which started “from the beginning” and took it in for service “to make sure that [she] was safe in the car...to make sure there was no safety issues with the car.” (UMF 9.) Plaintiff took the car in for service every six months or so. (Id.) Plaintiff testified that she had a stalling issue “since maybe 2019 or so.” (UMF 10.) Plaintiff testified that on June 4, 2019, she complained to an authorized dealership that “the collision mitigation light is on the dash. VSA lost communication/lane watch setting mitigation on.” (UMF 11.) Plaintiff testified she would not take the car on long trips due to reliability concerns, last taking a long trip to San Francisco in 2020 at which time experienced a concern which was “scary,” “the car stalled, and it rolled back a little bit.” (UMF 12.) Plaintiff hired an attorney in 2022 because she “was recommended through one of [her] colleagues at work because [she] was complaining about my car problems and all the issues [she] was having.” (UMF 13.)

Even if this evidence meets

Defendant’s initial burden that Plaintiff was aware that Defendant was unable to conform the Vehicle to the express warranties by June 2019, Plaintiff presents conflicting evidence as to when she was aware or should have been

aware of that fact. Plaintiff presents evidence that neither Defendant nor its repair facilities ever informed her that they were unable or unwilling to repair the defects in the vehicle. (AMF 26; Fletes Decl., ¶¶ 6-19.) At each visit, Honda's authorized repair technicians represented that the Vehicle was repaired. (Id.) This includes repair visits on June 4, 2019, August 30, 2021, January 13, 2022, March 24, 2022, August 6, 2022, and October 17, 2022. In late 2022, after the same start/stop failure returned following Honda's replacement of the switch, and the same collision-mitigation problem returned following Honda's earlier repairs, Plaintiff realized the Vehicle was defective and that Honda had not permanently repaired, or was incapable of permanently repairing, these defects. (Fletes Decl. ¶ 15.)

Thus, the conflicting record does not determine with certainty exactly when Plaintiff should have determined that Defendant was unable to repair the vehicle. A reasonable trier of fact could conclude that the cause of action accrued anywhere between the initial June 2019 repair (outside the limitations period) through 2022 repairs at the latest (inside the limitations period). Plaintiff also presents evidence that Defendant extended the relevant warranties past 2020. (UMF 8; Lister Decl. ¶¶ 3-5, Exs. A, B, E, F, I.) Thus, the accrual of the statute of limitations remains a triable issue of material fact.

Accordingly, the motion is DENIED.